and to location under the United States mining laws.

5. The following-described lands shall not be subject to application or to any form of appropriation under the public land laws unless and until it is so provided by an order of an authorized officer of the Bureau of Land Managament, pending clarification of status.

SAN BERNARDINO MERIDIAN

T. 2 N., R. 13 W.,
Sec. 35, lots 7, 8, and 9.

Aggregating 14.75 acres.

JOHN A. CARVER, Jr.,
*Assistant Secretary of the Interior.*

JUNE 26, 1961.

[F.R. Doc. 61-6176; Filed, June 30, 1961; 8:50 a.m.]

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[Public Land Order 2416]

[Wyoming 099445]

## WYOMING

### Partly Revoking Stock Driveway Withdrawals No. 128 and 144

By virtue of the authority contained in section 10 of the act of December 29, 1916 (39 Stat. 865; 43 U.S.C. 300), as amended, it is hereby ordered that the departmental order of December 28, 1922, enlarging Stock Driveway Withdrawals No. 128 and 144 be and the same is hereby revoked so far as it affects the following-described lands:

SIXTH PRINCIPAL MERIDIAN

T. 42 N., R. 86 W.,
Sec. 22, SW¼NE¼, W½SE¼, and SE¼-SE¼;
Sec. 26, NW¼NW¼;
Sec. 27, NE¼NE¼.

Containing 240 acres.

The lands are hereby restored to the operation of the public land laws, subject to any valid existing rights, the requirements of applicable law, rules and regulations, and the provisions of any existing withdrawals, provided that until 10:00 a.m., on December 26, 1961, the State of Wyoming shall have a preferred right to apply to select the lands in accordance with subsection (c) of section 2 of the act of August 27, 1958 (72 Stat. 928; 43 U.S.C. 851, 852).

The lands have been open to mineral leasing and to location under the United States mining laws.

Inquiries should be directed to the Manager, Land Office, Bureau of Land Management, Cheyenne, Wyoming.

JOHN A. CARVER, Jr.,
*Assistant Secretary of the Interior.*

JUNE 26, 1961.

[F.R. Doc. 61-6177; Filed, June 30, 1961; 8:51 a.m.]

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[Public Land Order 2417]

[1796532]

## ALASKA

### Revoking Executive Order No. 8344 of February 10, 1940

By virtue of the authority contained in sec. 1 of the act of June 25, 1910 (36 Stat. 847; 43 U.S.C. 141), it is ordered as follows:

1. Executive Order No. 8344 of February 10, 1940, withdrawing for classification and in aid of legislation all of Kodiak, Whale, Uganik, Spruce, Sitkalidak, and Aiaktalik Islands in Alaska, including with certain exceptions all adjacent islands, rocks, and pinnacles within two miles of the shores thereof comprising approximately 2,500,000 acres is hereby revoked.

2. Of the areas released from withdrawal by this order, an area of about 1,800,000 acres is included in the Kodiak National Wildlife Refuge. In addition, considerable areas are under grazing lease as authorized by the act of March 4, 1927 (44 Stat. 1452; 48 U.S.C. 471, 471a–471o). Lands included in such leases are considered to be appropriated and segregated and unavailable for entry under the homestead and similar public laws relating to vacant, unappropriated lands, unless and until they have been determined to be suitable for such purpose and appropriate action has been taken to cancel the lease to the extent necessary and to classify the lands for other use or disposal. (See 43 CFR 63.22.)

3. Until 10:00 a.m., on December 26, 1961, the State of Alaska shall have a preferred right to select the lands released from withdrawal by this order in accordance with and subject to the limitations and requirements of the act of July 28, 1956 (70 Stat. 709; 48 U.S.C. 46–3b), and section 6g of the Alaska Statehood Act of July 7, 1958 (72 Stat. 339), and the regulations in 43 CFR 76.1–76.18. Beginning 10:00 a.m., on December 26, 1961, the unappropriated public lands shall be subject generally to the operation of the public land laws, subject to valid existing rights, to equitable claims if allowed and confirmed, to the segregative effect of State selections that they may be filed, to governing rules and regulations, and the provisions of existing withdrawals.

4. There is excepted from the restoration made by this order an area one mile square surrounding each of the native villages of Old Harbor, Akhiok, Larsen Bay, Uganik, Uyak, Alitak, Ayakulik, and Kaguyak. Public Land Order No. 1634 of May 9, 1958, which reestablished the Kodiak National Wildlife Refuge, excluded these areas from the Refuge. They will not be subject to State selection or other appropriation or disposition under the public land laws unless and until it is so provided by order of an authorized officer of the Bureau of Land Management.

The lands have been open to mineral leasing and to location for metalliferous minerals.

Information concerning the lands can be secured from the Manager, Land Office, Bureau of Land Management, Anchorage, Alaska.

The status of the lands in the Kodiak National Wildlife Refuge is not affected by this order.

JOHN A. CARVER, Jr.,
*Assistant Secretary of the Interior.*

JUNE 26, 1961.

[F.R. Doc. 61-6178; Filed, June 30, 1961; 8:51 a.m.]

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[Public Land Order 2418]

[1935558]

## ALASKA

### Revoking Public Land Order No. 255 of December 15, 1944 in Part and Air Navigation Site No. 167 Entirely; Rewithdrawing Portions of the Released Lands

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952, and by virtue of the authority contained in section 4 of the act of May 24, 1928 (45 Stat. 729; 49 U.S.C. 214), it is ordered as follows:

1. Public Land Order No. 255 of December 15, 1944, so far as reserved the following-described lands for use of the War Department is hereby revoked:

a. *Gulkana*

Beginning at the corner of secs. 18 and 19 on the west boundary of T. 4 N., R. 1 W., Copper River Meridian, thence easterly 2 miles between secs. 18 and 19, and 17 and 20, to the corner of secs. 16, 17, 20, and 21; thence East, 3 miles; North, 9 miles; West, 6 miles; South, 9 miles; East, 1 mile, point of beginning.

Containing approximately 34,560 acres.

b. *Delta Junction Area*

Beginning at a point on the centerline of the Alaska Highway, which bears east 6,200 feet more or less from U.S.C. and G.S. Monument "Mile 270", thence east 4,440 feet approximately to the northeast corner of Public Land Order No. 255 area; South, 2,900 feet approximately, to the centerline of the Alaska Highway; Northwesterly, 5,270 feet approximately, along the centerline of the highway to the point of beginning.

Containing about 143 acres.

2. The departmental orders of September 15, 1941, and February 15, 1942, reserving the following-described lands for use of the Department of Commerce in the maintenance of air navigation facilities as Air Navigation Site Withdrawal No. 167, are hereby revoked:

COPPER RIVER MERIDIAN

T. 4 N., R. 1 W., (partly unsurveyed)
Sec. 4, W½;
Sec. 5;
Sec. 6, E½;
Sec. 8, N½.
T. 5 N., R. 1 W., (partly unsurveyed)
Sec. 19, SE¼;
Sec. 20, S½;
Sec. 29;
Sec. 30, NE¼;
Sec. 32.

Aggregating 3,520 acres.

3. The Department of the Army and the Federal Aviation Agency continue to have a need for the following lands, described in terms of the public land surveys, which lands are respectively portions of the areas described in paragraphs 1a and 2 of this order, and such lands are hereby withdrawn, subject to valid existing rights, from all forms of appropriation under the public land laws, including the mining laws, but not disposals of materials under the act of July 31, 1947 (61 Stat. 681; 30 U.S.C. 601–604), as amended, nor with respect to lands in subparagraph b infra (Federal Aviation Agency), from the mineral leasing laws, and reserved as follows: